

Plaintiff shall submit the order and judgment.

11. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Background

Defendant filed a Motion to stay proceedings pending appeal.

The appeal stems from a decision by this court, on 2/3/26, to deny Defendant's request to compel arbitration and stay proceedings in superior court.

There is a trial in the matter set in August, 2026.

Analysis

Under Section 916(a) of the CCP, "[T]he perfecting of an appeal stays proceedings in the trial court upon the ... order appealed from or upon the matters embraced therein, or affected thereby."

In the instant matter, the issue resolved on 2/3/26, clearly affects the remainder of these proceedings, particularly the trial. If the appeal is resolved in Defendant's favor, then compelled arbitration may still occur in the matter, staying the proceedings, particularly the trial.

Thus, Section 916 applies.

Moreover, while there are some exceptions under Section 917 et seq., they do not appear to apply to the instant matter.

Disposition

Defendant's Motion to Stay Proceedings pending appeal is granted.

The court trial will be vacated.

A CMC is scheduled for 10/23/26 at 8:30 am.

The court will file the order and notice the parties.

12. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING: